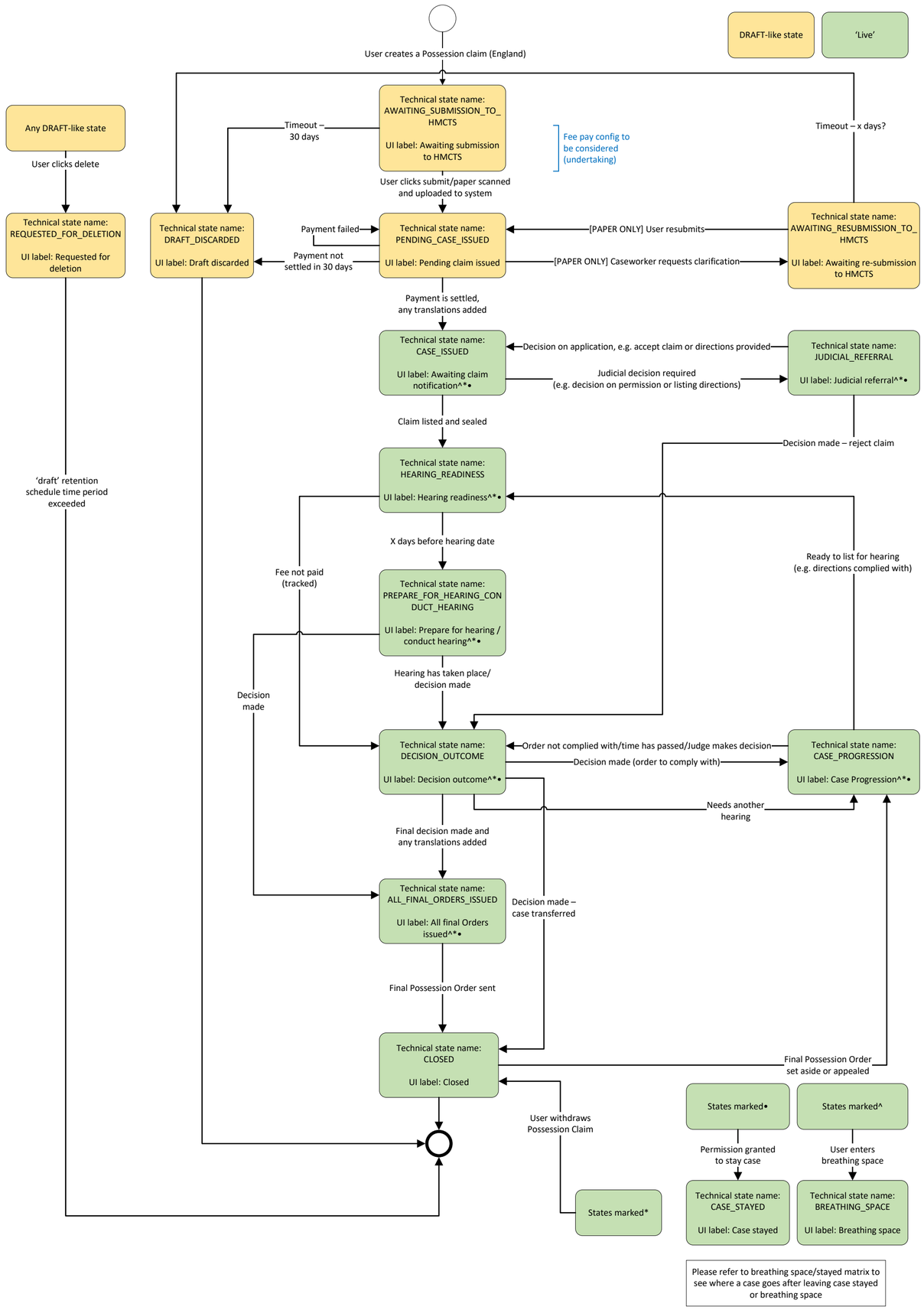
HM Courts & Tribunals Service

Process Name	Possessions Main Claim State Model (England)	Service Area	Civil Possession	Date Designed	September 2025



State model dependencies:

Impact of counter claims on main claims (applies to both England and Wales)

- A counter claim can be raised when the main claim is live (any state between case issued and decision outcome) – providing this is submitted alongside the defence/within the 14 days of receipt (without judge permission)
- A counter claim can be raised when the main claim is live (any state between case issued and all final orders issued) with judge permission (counter claim must be submitted together with a general application)
- Counter claim generally mirrors the main claim (linked – normally 1 order covering both counter claim and main claim)
- A counter claim could be open whilst the main claim is closed
- A counter claim could be closed whilst the main claim remains open
- Requirement: the ability for a super user to manually override to move a case between states when mirroring is not needed (rare scenario)

Impact of enforcement on main claims (applies to both England and Wales)

- Enforcement can only start once the final possession order has been sent
- Enforcement is on it's own journey after the main claim has closed

Impact of appeals (applies to both England and Wales)

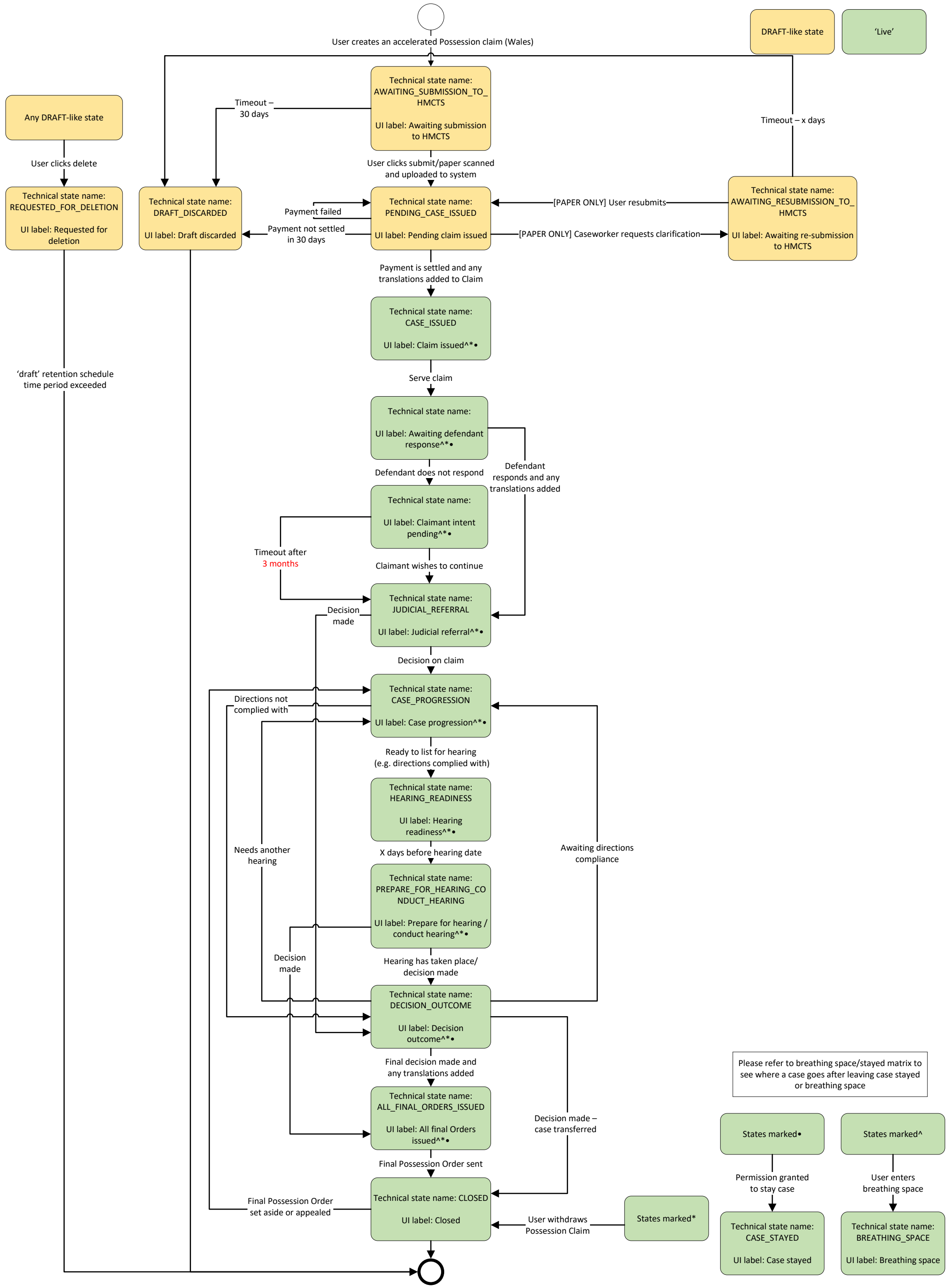
- Appeals can happen once a decision has been made (decision outcome). In the main claim and counter claim, an appeal can come in at hearing readiness, prepare for hearing, case progression, all final orders issued, closed **if** a decision has already been made
- If the state model is closed and a successful appeal comes in, it will move back to case progression – consider what case info needs to be kept/deleted/amended
- If the state model is not closed and a successful appeal comes in then this will be a manual intervention to change it to the required state – consider what case info needs to be kept/deleted/amended
- If an unsuccessful appeal comes in then the state model remains in the state they are in
- A main claim or counter claim could be stayed until the appeal is resolved
- If the main claim is closed and the counter claim is open, the appeal only applies to counter claim and only the counter claim state will change
- It is not possible to appeal a decision more than once (same person) as the appeal will be dealt with by a different level judge, e.g. DJ makes decision on Possession, appeal comes in, appeal is heard by CJ. Appeal comes in on CJ decision, appeal is referred to high court (not on Possession system)
- Although unlikely, it is possible a claim can have more than 1 appeal on a decision (one from each side). The first active appeal will change the state, the 2nd active appeal will go into the same state as the 1st but can be overwritten manually. If multiple appeals, judge might decide to list appeals together or separately
- If enforcement is in any live state (excluding closed) then a decision on the appeal could stop enforcement – enforcement stayed. Should we guide people in the journey, e.g. a tick box to select 'I want to stay enforcement' - potential rule change?
- If the main claim is set aside then the enforcement is closed. Requirement to flag to bailiff
- If appeal is not successful, depending on when the eviction scheduled date is then either move to awaiting bailiff allocation or keep at stage (e.g. scheduled eviction date) – decision to be made RE whether the cases should be automatically stayed

Impact of general applications (applies to both England and Wales)

- General applications can be submitted at any point in the journey (main claim/counter claim/enforcement/appeals) (once the claim has been created) – consider fees for Gen Apps submitted alongside claim
- The gen app decision can impact the main claim, counter claim or enforcement – e.g. adjourn the hearing, set aside, suspend eviction etc (can move back to hearing readiness) or it could move to decision outcome/final order
- Requirements – the ability for a caseworker to move the claim from one state to another (some system validation for what is allowed/not allowed), the ability to submit a general application alongside the main claim (e.g. 'make a gen app' after submitting and consider fees for Gen Apps submitted alongside)

HM Courts & Tribunals Service

Process Name	Possessions Accelerated Claim State Model (Wales only)	Service Area	Civil Possession	Date Designed	September 2025



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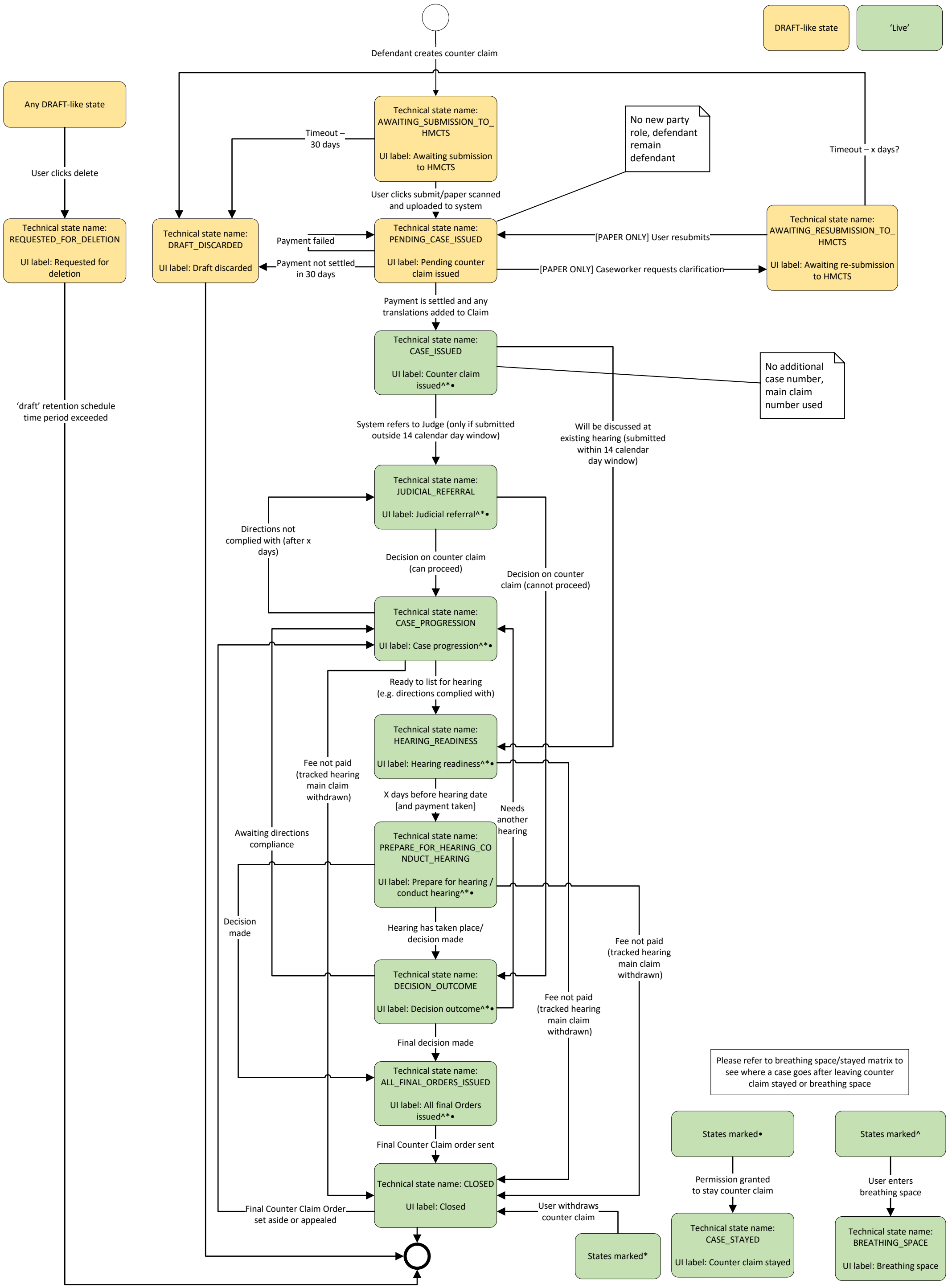
Process Name	Possessions Counter Claim State Model	Service Area	Civil Possession	Date Designed	September 2025



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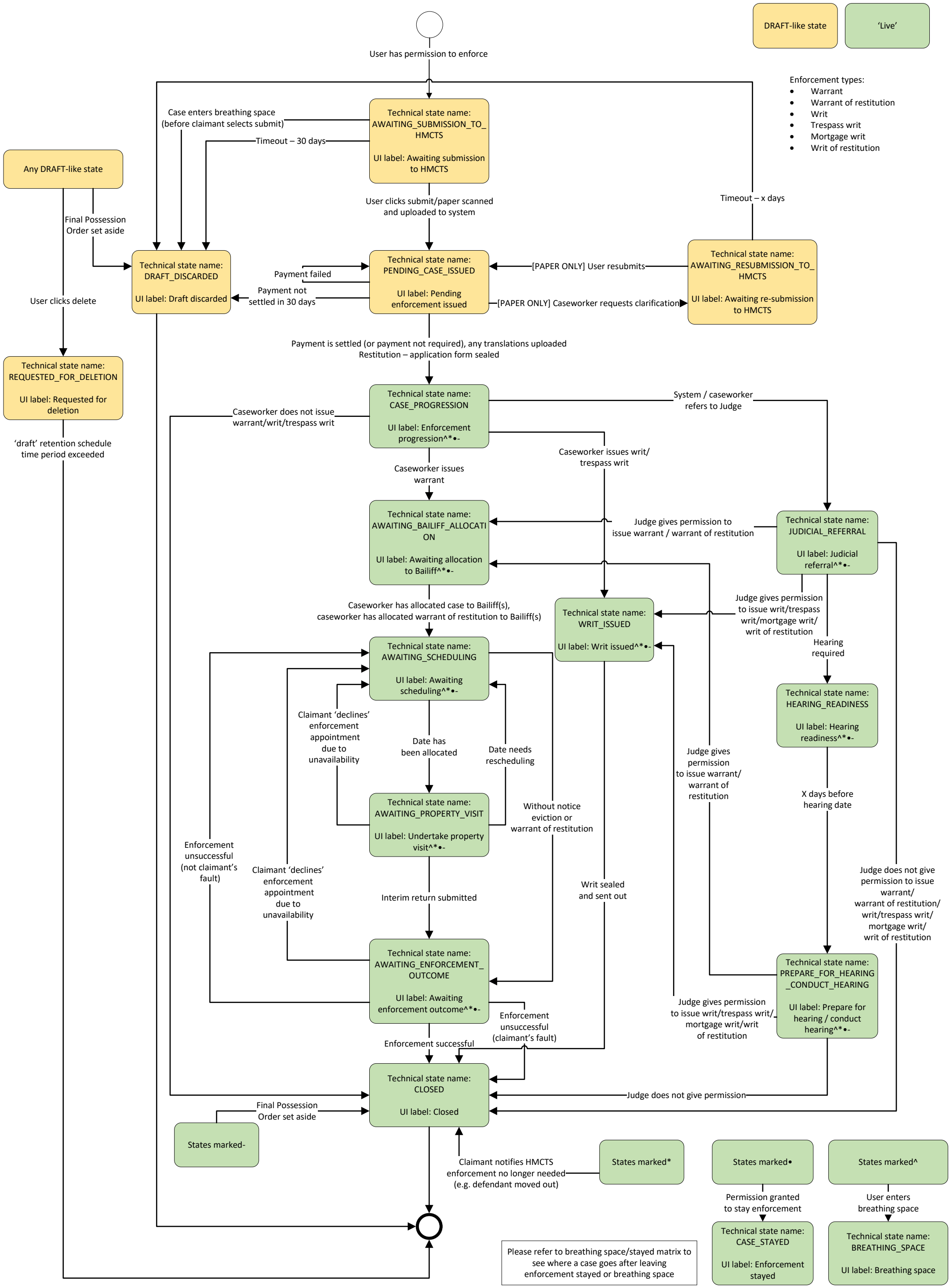
Process Name	Possessions Enforcement State Model	Service Area	Civil Possession	Date Designed	September 2025



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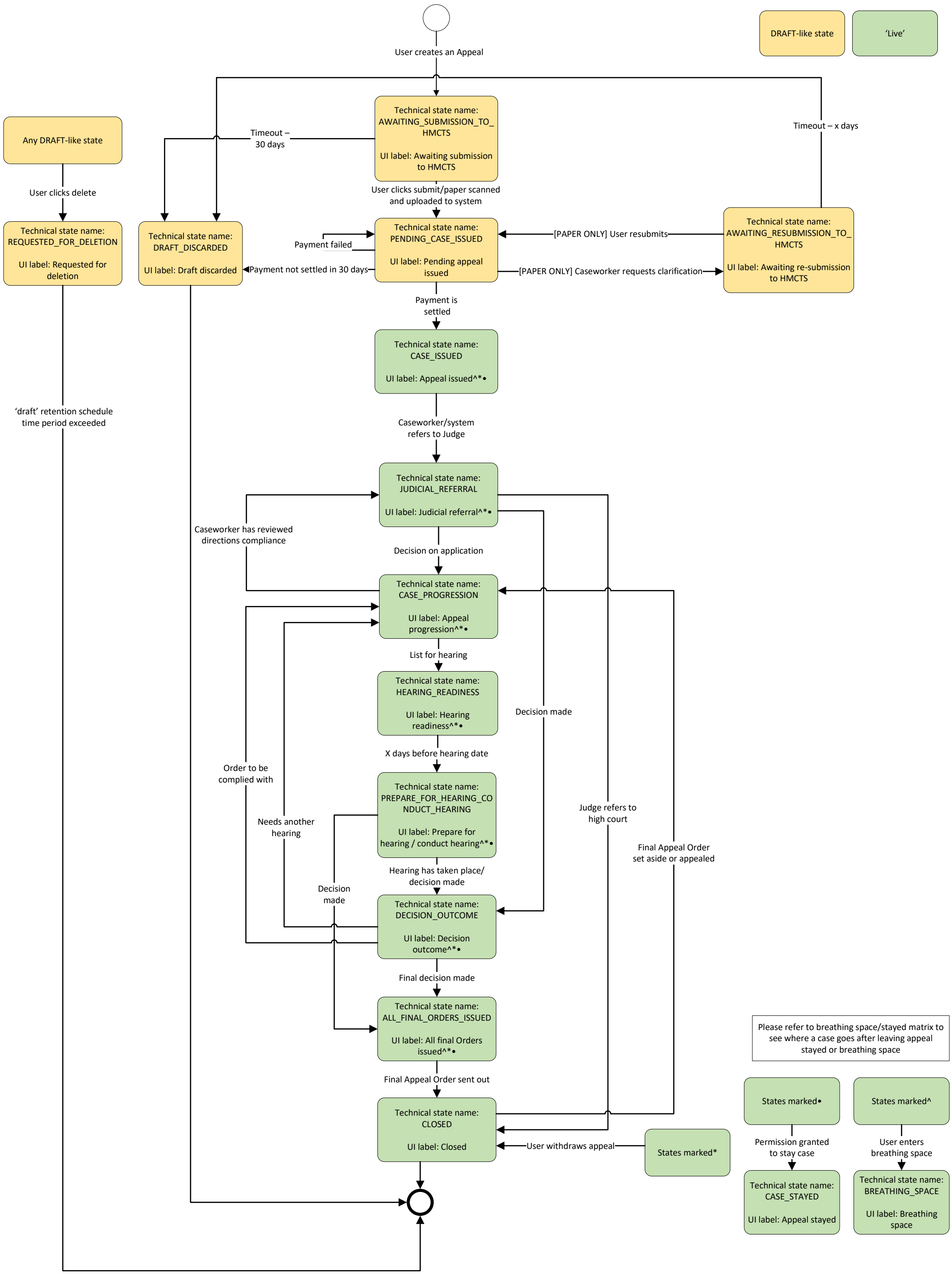
Process Name	Possessions Appeals State Model	Service Area	Civil Possession	Date Designed	September 2025



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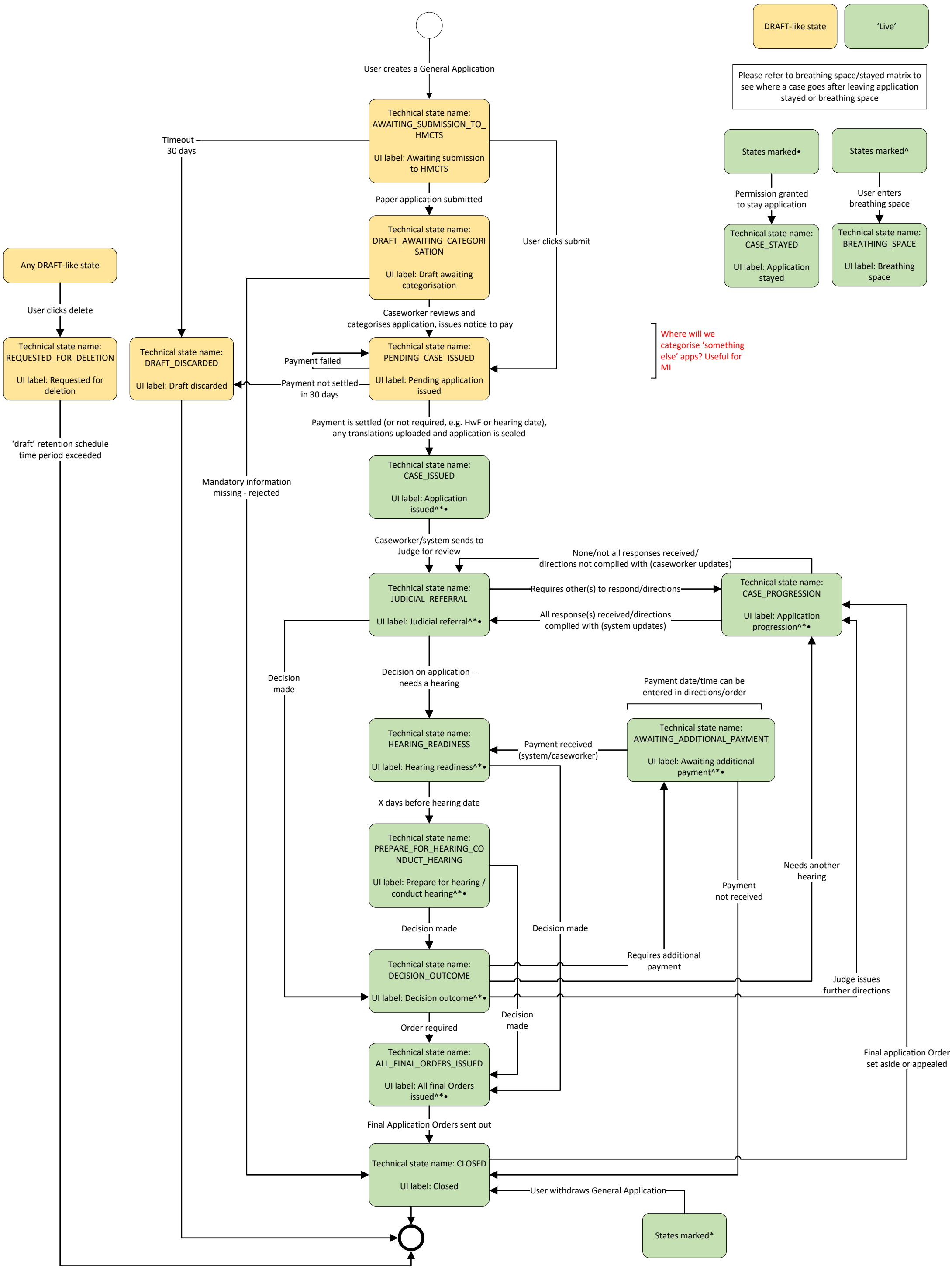
Process Name	Possessions General Application State Model	Service Area	Civil Possession	Date Designed	March 2026